

PLACER COUNTY SUPERIOR COURT
THURSDAY, CIVIL LAW AND MOTION
DEPARTMENT 3
THE HONORABLE MICHAEL W. JONES
TENTATIVE RULINGS FOR AUGUST 27, 2026, AT 8:30 A.M.

These are the tentative rulings for the **THURSDAY, AUGUST 27, 2026, at 8:30 A.M.**, civil law and motion calendar. The tentative ruling will be the court's final ruling unless notice of appearance and request for oral argument are given to all parties and the court by **4:00 p.m., WEDNESDAY, AUGUST 26, 2026**. Notice of request for argument to the court must be made by calling (916) 408-6481. Requests for oral argument made by any other method will not be accepted. Prevailing parties are required to submit orders after hearing to the court within 10 court days of the scheduled hearing date and approval as to form by opposing counsel. Court reporters are not provided by the court. Parties may provide a court reporter at their own expense.

NOTE: REMOTE APPEARANCES ARE STRONGLY ENCOURAGED FOR CIVIL LAW AND MOTION MATTERS. (PLACER COURT LOCAL RULE 10.24.) More information is available at the court's website: www.placer.courts.ca.gov.

Except as otherwise noted, these tentative rulings are issued by **THE HONORABLE MICHAEL W. JONES**. If oral argument is requested, it shall be heard at **8:30 a.m.** in **DEPARTMENT 3** located at the Historic Auburn Courthouse, 101 Maple Street, Auburn, California.

1. M-CV-0093810 JEFFERSON CAPITAL SYS. v. JOHNSON, JEREMY

Plaintiff's Motion for Judgment on the Pleadings

The court may grant a motion for judgment on the pleadings in favor of a plaintiff where the complaint states facts sufficient to constitute a cause of action, and the answer does not state facts sufficient to constitute a defense to the complaint. (Code Civ. Proc., § 438, subd. (c)(1)(A).) The grounds for the motion must appear on the face of the challenged pleading or based on facts which the court may judicially notice. (*Id.* subd. (d).) The court may take judicial notice of a defendant's uncontroverted admissions in responses to request for admissions or interrogatories. (*Arce v. Kaiser Foundation Health Plan, Inc.* (2010) 181 Cal.App.4th 471, 485; *see also Evans v. California Trailer Court, Inc.* (1994) 28 Cal.App.4th 540, 549, disapproved on other grounds in *Black Sky Capital LLC v. Cobb* (2019) 7 Cal.5th 156.)

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Here, defendant's answer admits all of the statements in the complaint were true except for a challenge to the service of summons. However, the court subsequently denied defendant's motion to quash, service of summons is not an element of plaintiff's common counts cause of action, and the complaint states facts sufficient to constitute the common counts cause of action. Accordingly, plaintiff's motion for judgment on the pleadings is granted.

2. M-CV-0096560 ELGUINDY, MEYER & KOEGEL v. EVOLUTION COM

The motion to strike answer is dropped from calendar in light of the notice of settlement of entire case filed with the court on August 13, 2026.

3. M-CV-0097661 IH4 PROPERTY WEST LP v. ROUNDTREE, LOREN

Application for Further Stay of Execution of Judgment

Appearance of the parties is required on **August 27, 2026 at 8:30 a.m. in Department 3.**

4. S-CV-0047960 NOVAK, CHRISTOPHER v. THOMPSON, GREGORY

Plaintiffs' Motion for Reconsideration of Plaintiffs' Motion for Relief From Order

Plaintiffs move for the court to reconsider its May 11, 2026, ruling denying plaintiffs' motion for relief from order.

First, the motion is procedurally defective because it does not identify any new or different facts, circumstances, or law. (Code Civ. Proc., § 1008, subd. (a).)

Second, even if the court considered the merits of the motion, the discretionary relief provision does not provide plaintiffs their requested relief. Notably, "the discretionary relief provision of section 473 only permits relief from attorney error fairly imputable to the client, i.e., mistakes anyone could have made. [Citation.] Conduct falling below the professional standard of care, such as failure to timely object or to properly advance an argument, is not therefore excusable. To hold otherwise would be to eliminate the express statutory requirement of excusability and effectively eviscerate the concept of attorney malpractice." (*Zamora v. Clayborn Contracting Group, Inc.* (2002) 28 Cal.4th 249, 258.) Here, plaintiffs' counsel missing the statute of limitations is not imputable to the client and falls below the professional standard of care.

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Accordingly, plaintiffs' motion for reconsideration is denied.

Defendants' request for sanctions is denied.

Motion for Relief

The motion for relief is dropped from calendar as no moving papers were filed with the court.

5. S-CV-0051131 FERREIRA, RITAJEAN v. FLYERS ENERGY

Plaintiff's Motion for Preliminary Approval of Class and Representative Action Settlement and Provisional Class Certification for Settlement Purposes Only

The unopposed motion is granted. The court has broad discretion in determining whether a class action settlement is (1) fair and reasonable, (2) the class notice is adequate, and (3) certification of the class is proper. (*In re Cellphone Fee Termination Cases* (2010) 186 Cal.App.4th 1380, 1389.) Further, the court reviews the moving papers along with the entirety of the court file to determine that the settlement is genuine, meaningful, and consistent with the underlying purposes of the PAGA-related statute. (Labor Code section 2699(s); *O'Connor v. Uber Technologies, Inc.* (N.D. Cal. 2016) 201 F.Supp.3d 1110.) The court must also determine whether the PAGA settlement appears fundamentally fair, reasonable, and adequate. (*Ibid.*)

The court has carefully reviewed and considered the Class and PAGA Settlement Agreement and plaintiff's moving papers filed in connection with the motion. The court determines a sufficient showing has been made that the class action settlement is fair, reasonable, genuine, meaningful, and adequate. The court also determines the settlement is fair, reasonable, genuine, and consistent with the purpose of PAGA.

For the purposes of the settlement, the court hereby certifies the class as defined on page 3, paragraph 1.5 of the Class and PAGA Settlement. The court preliminarily approves the Class and PAGA Settlement and Class Notice. The court approves the proposed form of the notice, and incorporates by reference the findings and orders outlined in the proposed order lodged with the court on June 11, 2026.

The final approval hearing is set for **Thursday, January 28, 2027, at 8:30 a.m.** in **Department 3.**

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6. S-CV-0051611 SUPREMA MEATS v. SALINAS FOOD

Defendants Feng Xiang Zhao AKA Tom Jau, Yin Chee Ting, and Great Golden River's Motion for Summary Judgment

A motion for summary judgment must be filed and served at least 81 days before the time appointed for hearing. (Code Civ. Proc., § 437c, subd. (a)(2).) This timeline is increased by 2 court days where, as here, the motion was served by e-mail. (*Ibid.*; Code Civ. Proc., § 1010.6, subd. (a)(3)(B).)

The time appointed for hearing is August 27, 2026. Subtracting 81 days plus 2 court days creates a deadline to file and serve the motion for summary judgment by e-mail on or before June 4, 2026. However, defendants served their motion for summary judgment by e-mail on June 5, 2026. This is untimely.

Accordingly, defendants' motion for summary judgment is denied.

7. S-CV-0052150 ZOLLER, KATHIE v. DONALD RYAN AND CAROLYN RYAN

Defendants' Motion for Summary Adjudication on the Second Cause of Action for Intentional Infliction of Emotional Distress and on the Claim for Punitive Damages

Preliminary Matters

Plaintiffs' objections are sustained in their entirety.

Defendants' reply brief, along with objections to plaintiffs' evidence and a responsive separate statement to plaintiffs' additional material facts, are untimely filed and served without explanation. (Code Civ. Proc., § 437c, subd. (b)(4).) The court declines to consider these documents.

Ruling on Motion

Defendants move for summary adjudication as to the second cause of action for intentional infliction of emotional distress and prayer for punitive damages as to plaintiffs' first amended complaint. A motion for summary adjudication requires a showing that there is no merit to one or more of the causes of action. (Code Civ. Proc., § 437c, subd. (f)(1).) A motion for summary adjudication proceeds "in all procedural respects as a motion for summary judgment." (*Id.* at § 437c, subd. (f)(2).)

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In reviewing a motion for summary adjudication, the trial court must view the supporting evidence, and inferences reasonably drawn from such evidence, in the light most favorable to the opposing party. (*Aguilar v. Atlantic Richfield Company* (2001) 25 Cal.4th 826, 843.) Defendants, as the moving parties, bear the initial burden of establishing that “one or more elements of the cause of action, even if not separately pleaded, cannot be established, or that there is a complete defense to the cause of action.” (Code Civ. Proc. § 473c, subd. (p)(2).) Once that burden is met, the burden shifts to the “plaintiff to show that a triable issue of one or more material facts exists as to the cause of action or a defense.” (*Ibid.*) Pursuant to the “golden rule” of summary judgments, “if it is not set forth in the separate statement, it does not exist.” (*California-American Water Co. v. Marina Coast Water Dist.* (2022) 86 Cal.App.5th 1272, 1296.)

Second Cause of Action—Intentional Infliction of Emotional Distress

Plaintiffs must establish the following elements for an intentional infliction of emotional distress cause of action: “(1) outrageous conduct by the defendant, (2) intention to cause or reckless disregard of the probability of causing emotional distress, (3) severe emotional suffering and (4) actual and proximate causation of the emotional distress.” (*Wong v. Jing* (2010) 189 Cal.App.4th 1354, 1376.) Courts recognize there is a high bar for what constitutes severe distress. (*Hughes v. Pair* (2009) 46 Cal.4th 1035, 1051.) Conduct is outrageous “when it is so extreme as to exceed all bounds of that usually tolerated in a civilized society.” (*Id.* at 1050–51.) As such, liability “does not extend to mere insults, indignities, threats, annoyances, petty oppressions, or other trivialities.” (*Id.* at 1051.)

Here, defendants meet their initial burden to show that plaintiffs cannot establish the third element for severe emotional suffering. (UMF Nos. 6–8, 11–19.) The burden therefore shifts to plaintiffs to raise a triable issue of material fact.

Plaintiffs do not thereafter meet their burden to raise a triable issue of material fact as to the third element. Accordingly, defendants’ motion for summary adjudication is granted as to the second cause of action for intentional infliction of emotional distress.

Punitive Damages Prayer

Punitive damages are available “where it is proven by clear and convincing evidence that the defendant has been guilty of oppression, fraud, or malice.” (Civ. Code § 3294, subd. (a).) Malice is “conduct which is intended by the defendant to cause

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injury to the plaintiff or despicable conduct which is carried on by the defendant with a willful and conscious disregard of the rights or safety of others.” (*Id.* at § 3294, subd. (c)(1).) Oppression is “despicable conduct that subjects a person to cruel and unjust hardship in conscious disregard of that person’s rights.” (*Id.* at § 3294, subd. (c)(2).)

Here, defendants meet their initial burden to show that plaintiffs cannot establish entitlement to punitive damages because there is insufficient evidence that defendants acted with oppression, fraud or malice. (UMF Nos. 21–26.) The burden therefore shifts to plaintiffs to raise a triable issue of material fact.

Plaintiffs do not thereafter meet their burden to raise a triable issue of material fact as to their entitlement to punitive damages. Accordingly, defendants’ motion for summary adjudication is granted as to the prayer for punitive damages.

In sum, defendants’ motion for summary adjudication is granted as to the second cause of action for intentional infliction of emotional distress and prayer for punitive damages.

8. S-CV-0052930 HAMMACK, ELIZABETH v. ESTATE OF JERRY CEPEL

Petition for Approval of Minor’s Compromise Claim (Sameera Pannu)

The petition for approval of minor’s compromise claim is granted. After careful consideration of the petition and attachments, the court finds the settlement is in the best interest of the minor. (Prob. Code, § 3500; Code Civ. Proc., § 372; *Pearson v. Superior Court* (2012) 202 Cal.App.4th 1333, 1337-38.)

Petition for Approval of Minor’s Compromise Claim (Cyrus Pannu)

The petition for approval of minor’s compromise claim is granted. After careful consideration of the petition and attachments, the court finds the settlement is in the best interest of the minor. (Prob. Code, § 3500; Code Civ. Proc., § 372; *Pearson v. Superior Court* (2012) 202 Cal.App.4th 1333, 1337-38.)

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9. S-CV-0053944 IN RE THE PETITION OF DANIELLE SCHNEIDER

Petition for Approval of Minor's Compromise Claim

The court continued the matter on April 23, 2026, for petitioner to file a supplemental declaration that attaches the proposed annuity terms for the court's consideration. However, the supplemental declaration filed with the court on July 17, 2026, does not include the proposed annuity terms. Thus, the court cannot determine whether the proposed annuity is in the best interest of the minor. Accordingly, the petition for approval of minor's compromise claim is denied without prejudice.

10. S-CV-0057600 LALLISS, STEVEN v. HARRIS, LORENZO

Plaintiff's Motion for Leave to Amend Complaint

Preliminary Matters

The court observes defendant's moving and reply papers exceed the page limit delineated in California Rules of Court, Rule 3.1113, subdivision (d). The court admonishes defendant to adhere to the applicable California Rules of Court for future filings.

Defendant's requests for judicial notice are granted as to the existence of the documents but not any inferences drawn therefrom.

Plaintiff's requests for judicial notice are granted.

Plaintiff's objections are overruled in their entirety.

Defendant's objections are overruled in their entirety.

Ruling on Motion

Defendant moves to strike the entirety of plaintiff's complaint—which includes causes of action for (1) defamation; (2) public disclosure of private facts; (3) breach of fiduciary duty; (4) bad faith invasion of privacy; and (5) false light invasion of privacy—pursuant to Code of Civil Procedure section 425.16.

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A motion brought under Code of Civil Procedure section 425.16, also known as an anti-SLAPP motion, is a procedural remedy designed to dispose of lawsuits that are brought primarily to chill the valid exercise of a party's constitutional right of petition or free speech. (Code Civ. Proc. § 425.16(a); see also *Sylmar Air Conditioning v. Pueblo Contracting Svcs., Inc.* (2004) 122 Cal.App.4th 1049, 1055-1056.) In determining whether an action or claim is a SLAPP suit subject to a special motion to strike, the court evaluates first whether the claim arises out of the defendant's protected speech or petitioning activity, and second whether plaintiff can show a probability of success on the merits. (*Navellier v. Sletten* (2002) 29 Cal.4th 82, 88-89.) Defendant has the burden of proof to show that plaintiff's claims arise from defendant's exercise of free speech or petition rights as defined in Code of Civil Procedure section 425.16(e). (*Equilon Enterprises, LLC v. Consumer Cause, Inc.* (2002) 29 Cal.4th 53, 61.) "When relief is sought based on allegations of both protected and unprotected activity, the unprotected activity is disregarded at this stage. If the court determines that relief is sought based on allegations arising from activity protected by the statute, the second step is reached." (*Baral v. Schnitt* (2016) 1 Cal.5th 376, 396.) The second step shifts the burden to plaintiffs to establish a probability of prevailing on the claim. (*Governor Gray Davis Committee v. American Taxpayers Alliance* (2002) 102 Cal.App.4th 449, 458-459.) At the second step "the court's responsibility is to accept as true the evidence favorable to the plaintiff [citation] and evaluate the defendant's evidence only to *determine if it has defeated that submitted by the plaintiff as a matter of law*. [Citations.] The trial court merely determines whether a prima facie showing has been made that would warrant the claim going forward." (*Blanchard v. DIRECTV, Inc.* (2004) 123 Cal.App.4th 903, 918 [emphasis in original].)

Defendant argues each cause of action arises from acts by defendant in furtherance of his right of petition or free speech under the United States Constitution or the California Constitution in connection with a public issue. Code of Civil Procedure section 425.16(e) further defines "acts in furtherance of a person's right of petition or free speech" as used in section 425.16(b) to include:

- (1) any written or oral statement or writing made before a legislative, executive, or judicial proceeding, or any other official proceeding authorized by law, (2) any written or oral statement or writing made in connection with an issue under consideration or review by a legislative, executive, or judicial body, or any other official proceeding authorized by law, (3) any written or oral statement or writing made in a place open to the public or a public forum in connection with an issue of public interest, or (4) any other conduct in

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furtherance of the exercise of the constitutional right of petition or the constitutional right of free speech in connection with a public issue or an issue of public interest.

Defendants' motion appears to invoke section 425.16, subdivision (e)(3).

In assessing whether the first prong has been met, the court analyzes whether defendant's acts underlying plaintiff's cause of action *itself* was an act in furtherance of the right of free speech, not simply whether protected activity took place. (*City of Cotati v. Cashman* (2002) 29 Cal.4th 69, 78; *Navellier v. Sletten, supra*, 29 Cal.4th at 89.) Where, as here, subdivision (e)(3) is invoked, defendant must also demonstrate the alleged statements were made in connection with an issue of public interest.

Here, defendant satisfies his burden as to the first prong because he presents evidence that the alleged statements to third parties were made in a public forum of the Homeowner's Association meeting and in connection with an issue of public interest of elections to the Homeowner's Associations board of directors. (*Cabrera v. Alam* (2011) 197 Cal.App.4th 1077, 1088–92.)

The burden therefore shifts to plaintiffs to establish that each challenged claim based on the protected activity is legally sufficient and factually substantiated. (*Baral v. Schnitt* (2016) 1 Cal.5th 376, 396.) However, plaintiffs do not meet their burden as to any of the causes of action.

Accordingly, defendants' motion is granted without leave to amend.

Defendant may file a separately noticed motion for attorney's fees. (Code Civ. Proc., § 425.16, subd. (c)(1).)

11. S-CV-0057858 HATAMI, JULIE v. HARTFORD, JOHN

Plaintiffs/Judgment Creditors' Motion to Reopen Hearing on Application for Order for Sale of Dwelling, and Adjacent Vacant Lot; Or, Alternatively, for Reconsideration

On July 9, 2026, the court denied plaintiffs/judgment creditors' motion for order for sale of dwelling without prejudice because there was insufficient evidence the dwelling at issue was levied on, a levying officer served defendant/judgment debtor with notice of the levy, or plaintiffs/judgment creditors brought the application within 20 days of the notice of levy being served on the judgment debtor.

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Plaintiffs/judgment creditors now move for the court to reopen the hearing or reconsider its ruling.

First, plaintiffs/judgment creditors request the court to re-open the July 9, 2026, hearing to allow further argument pursuant to the mandatory attorney fault provision in Code of Civil Procedure section 473, subdivision (b) for their counsel's failure to attend oral arguments. However, the court already adopted the tentative ruling and thus further argument on the matter would be fruitless.

Second, plaintiffs/judgment creditors move for the court to reconsider its ruling pursuant to Code of Civil Procedure section 1008. However, as plaintiffs/judgment creditors concede, there are no new facts because the alleged facts plaintiffs/judgment creditors want the court to consider were known at the time of the original hearing. Additionally, plaintiffs/judgment creditors do not submit an affidavit that details "what application was made before, when and to what judge, what order or decisions were made, and what new or different facts, circumstances, or law are claimed to be shown." (Code Civ. Proc., § 1008.)

The court is sympathetic to plaintiffs/judgment creditors' counsel's health concerns. However, the motion does not raise a sufficient factual or legal basis for the court to reopen oral arguments or reconsider its ruling.

Accordingly, plaintiffs/judgment creditors motion is denied.

12. S-CV-0058150 IN RE THE MATTER OF TINNEY, MADELYN

Petition for Approval of Minor's Compromise Claim

The petition for approval of minor's compromise claim is denied without prejudice. Petitioner seeks to recoup \$135,670.12 from the settlement due to her loss of income while caring for the minor and selling and purchasing a new home. The court cannot find this is in the best interest of the minor. Additionally, counsel of record did not sign his declaration in support of attorney's fees and costs.

13. T-CV-0002710 ZHANG, AILING v. THE RITZ-CARLTON HOTEL

The is dropped from calendar in light of the full dismissal with prejudice filed with the court on June 8, 2026.

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14. T-CV-0002801 KERN, GREGORY v. WEBER, ANNE

Plaintiff's Motion for Leave to Amend Complaint

Plaintiff's motion for leave to file a first amended complaint is granted. (Code Civ. Proc., §§ 473, subd. (a)(1), 576.) Plaintiff shall file and serve the first amended complaint lodged with the court on July 14, 2026, on or before **September 3, 2026**.